

Calendar Line 1

Case Name: *Catalan v. Ford Motor Co., et al.*

Case No.: 24CV444665

Defendants Ford Motor Company and All Star Ford (collectively, “Defendants”) move for judgment on the pleadings on the first through fourth causes of action, asserting that “Plaintiff’s failure to respond to Ford’s Requests for Admission (‘RFAs’) resulted in a court order deeming them admitted... [and t]hose deemed admissions conclusively negate essential elements of Plaintiff’s Song-Beverly claims... claims for negligence and establish the absence of any recoverable damages.” (Defs.’ memorandum of points and authorities in support of motion for judgment on the pleadings (“Defs.’ memo”), p.3:9-13.) In support of their motion, Defendants presented a tentative ruling and a proposed order submitted on February 18, 2026 that “remains waiting for the final signature of the Court.” (Vanderhoof decl. in support of Defs.’ motion for judgment on the pleadings, ¶ 5.) Defendants did not request judicial notice of any order in connection with their motion. Thereafter, in connection with their reply brief, Defendants requested judicial notice of the March 10, 2026 order regarding the matters in the RFAs as conclusively established.

Here, Defendants did not present the March 10, 2026 order in connection with their motion. While the Court may, in addition to the facts pleaded, consider matters that are proper subjects of judicial notice, including a party’s admissions, the matter upon which the motion was premised was not presented. Indeed, the Vanderhoof declaration plainly states that Defendants did not have a final order regarding the matters in the RFAs. Instead, Defendants did not request judicial notice of the March 10, 2026 order until after Plaintiff had filed his opposition. The Court may not consider Defendants’ request for judicial notice, made for the first time in reply, as it violates Plaintiff’s due process rights. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (stating that “the evidence... was not filed until after

assignee had responded to the issues... [i]n considering this evidence, the court violated assignee's due process rights"); see also *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228 (Sixth District stating that "[t]he general rule of motion practice... is that new evidence is not permitted with reply papers"); see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 (stating same); see also *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1210 (stating same); see also *City of Rocklin v. Legacy Family Adventures-Rocklin, LLC* (2022) 86 Cal.App.5th 713, 730 (stating same).) These issues are also more properly the subject of a motion for summary judgment. Defendants' motion for judgment on the pleadings is DENIED in its entirety.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 6

Case Name: *Schwarting, et al. v. Kwong, et al.*

Case No.: 25CV474549

City's demurrer to the fifth cause of action for inverse condemnation

"A successful inverse condemnation claimant must prove that a public entity has taken or damaged its property for a public use." (*Pacific Bell v. City of San Diego* (2000) 81 Cal.App.4th 596, 602.) "To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff's property." (*City of Pasadena v. Super. Ct. (Mercury Casualty Co.)* (2014) 228 Cal.App.4th 1228, 1233.) "[A] public improvement for the purposes of an inverse condemnation claim involves (1) a deliberate action by the state (2) taken in furtherance of public purposes." (*Id.* at p.1234.) "There is no 'deliberate governmental action' when the purported public improvement is neither an 'instrumentalit[y] of the state nor... controlled by the state.'" (*Id.*) Here, the complaint alleges neither a taking nor